



REFERRING A DISPUTE TO THE CCMA FOR CONCILIATION (INCLUDING CON-ARB) LRA Form 7.11 **ONLINE REFERENCE NO: EWECT0125188054**

1. DETAILS OF PARTY REFERRING DISPUTE
PARTY REFERRING TYPE:
EMPLOYEE
PARTY REFERRING IDENTIFICATION DETAILS:
NAME:
WILBUR
SURNAME:
MATTHEE
LENGTH OF SERVICE:
1 TO 5 YEARS
SA ID NO:
8909035151087
GROSS SALARY:
R22 000 TO R50 000
NET SALARY:
R22 000 TO R50 000
GENDER:
M
AGE:
36
NATIONALITY:
SOUTH AFRICA
POSTAL ADDRESS:
15 BELLEVUE STREET
POSTAL CODE:
7100
CITY:
CAPE TOWN
PROVINCE:
WESTERN CAPE
TEL:
CELL:
0633788782
FAX:
EMAIL:
WILBURMAT@GMAIL.COM
ALTERNATIVE CONTACT DETAILS OF THE EMPLOYEE:
NAME:
SURNAME:
POSTAL ADDRESS:
POSTAL CODE:

TEL:
CELL:
FAX:
EMAIL:
2. DETAILS OF THE OTHER PARTY (PARTY WITH WHOM YOU ARE IN DISPUTE)
OTHER PARTY TYPE:
EMPLOYER
OTHER PARTY IDENTIFICATION DETAILS:
ORGANISATION NAME:
AFROCENTRIC HEALTH (PTY) LTD
CONTACT PERSON NAME:
XOLILE
CONTACT PERSON SURNAME:
MANYATI
POSTAL ADDRESS:
37 CONRAD ROAD FLORIDA NORTH
POSTAL CODE:
1709
CITY:
ROODEPOORT
PROVINCE:
GAUTENG
TEL:
0116714420
CELL:
0116712000
FAX:
EMAIL:
IR@AFROCENTRICHEALTH.COM
COMPANY REG NO:
1996/009540/07
NUMBER OF EMPLOYEES:
101 OR MORE
3. NATURE OF THE DISPUTE
DISPUTE TYPE:
DISMISSAL
DISMISSAL REASON:
OTHER
OTHER DISMISSAL REASON:
AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL
4. SUMMARISE THE FACTS OF THE DISPUTE
DISPUTE SUMMARY:
CONSTRUCTIVE DISMISSAL DUE TO RETALIATORY INTOLERABLE ENVIRONMENT AFTER PROTECTED DISCLOSURE (P1 REPORT), INCLUDING UNLAWFUL SALARY DEDUCTION & MALICIOUS SWORN AFFIDAVIT (10 DEC 2025). AUTOMATICALLY UNFAIR UNDER S187(1)(H) LRA.
DATE DISPUTE AROSE:
13/12/2025
5. DATE AND PLACE WHERE DISPUTE AROSE
PLACE DISPUTE AROSE:
CAPE TOWN
6. DATE OF DISMISSAL
DISMISSAL DATE:
12/12/2025

7. FAIRNESS/UNFAIRNESS OF DISMISSAL
WAS DISMISSAL PROCEDURE UNFAIR?:
NO
WAS DISMISSAL REASON UNFAIR?:
YES
REASONS WHY DISMISSAL WAS UNFAIR:
THE DISMISSAL WAS AUTOMATICALLY UNFAIR UNDER SECTION 187(1)(H) OF THE LRA AS I WAS CONSTRUCTIVELY DISMISSED. THIS OCCURRED AFTER THE EMPLOYER, THROUGH ITS LEGAL TEAM, RETALIATED AGAINST ME IN A SWORN AFFIDAVIT, RENDERING THE EMPLOYMENT RELATIONSHIP IRRETRIEVABLY INTOLERABLE.
8. RESULTS REQUIRED
RESULTS REQUIRED SUMMARY:
MAXIMUM COMPENSATION: AN ORDER THAT THE RESPONDENT PAY ME COMPENSATION, CALCULATED AT MY CTC SALARY RATE AS A RESULT OF LOSS OF BENEFITS THAT I WILL NO LONGER BE ENTITLED TO, AS PERMITTED UNDER SECTION 194(3) OF THE LRA FOR AUTOMATICALLY UNFAIR DISMISSALS.
HAVE AN INDEPENDENT REVIEW INTO THEIR PROTECTED DISCLOSURE PROCESS AND PROVIDE THE NECESSARY MANDATORY TRAINING TO ALL MANAGERS FROM THE LINE RIGHT. REMEDY THOSE GAPS IDENTIFIED THE BY REVIEWER. WITH THAT SAID THE COMPANY POSSESS AN AMAZING TALENT POOL WHO WOULD THRIVE IN A SAFE ENVIRONMENT.
FURTHER COMPENSATION FOR THE FINANCIAL HARDSHIP, DEBT, AND PSYCHOLOGICAL HARM CAUSED BY THE DEDUCTION AND SUBSEQUENT VICTIMISATION, AS ACTIONABLE UNDER SECTION 4 OF THE PROTECTED DISCLOSURES ACT.
9. SECTOR
SECTOR NAME:
BUSINESS/PROFESSIONAL SERVICES
10. INTERPRETER SERVICES
INTERPRETER REQUIRED:
NO
11. DISCRIMINATION MATTER
IS IT A DISCRIMINATION MATTER:
YES
STEPS TAKEN TO ADDRESS DISCRIMINATION MATTER:
I SUBMITTED MY FORMAL RESIGNATION CITING THE DISCRIMINATORY AFFIDAVIT IN THE RESIGNATION LETTER PROVIDED TO THE EMPLOYER DEMANDING MAXIMUM COMPENSATION FOR THESE ACTS THAT RESULTED IN AN AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL. ALL INTERNAL STEPS WERE MET WITH FAILURE, INACTION, OR ESCALATED RETALIATION, LEAVING EXTERNAL DISPUTE RESOLUTION AS THE ONLY REMAINING REMEDY.
12. CONFIRMATION OF ABOVE DETAILS
SUBMITTER NAME:
WILBUR
SUBMITTER POSITION:
SPECIALIST NURSE HEALTH SERVICES MANAGER
DATE SUBMITTED:
19/12/2025
SUBMISSION PLACE:
CAPE TOWN
DO YOU HAVE ACCESS TO A DEVICE THAT ALLOWS YOU TO CONNECT TO AN ONLINE FACILITY SUCH AS MICROSOFT TEAMS?:
YES

REFERRER ACKNOWLEDGEMENT:

I **WILBUR** acknowledge that the information and documents submitted on this **19TH** day of **DECEMBER 2025** at **CAPE TOWN** are an accurate account of the events and parties involved in this case referral.

THIS DOCUMENT HAS BEEN EMAILED TO THE FOLLOWING PARTIES:

PARTY TYPE	SUBMITTED	DATE SUBMITTED	PARTY EMAIL
CCMA	✓	19/12/2025	wectonline@ccma.org.za
PARTY REFERRING	✓	19/12/2025	wilburmat@gmail.com
OTHER PARTY	✓	19/12/2025	ir@afrocentrichealth.com